

COMMERCIAL AGREEMENT

Master Services Agreement

Acme AI Limited and Microsoft Ireland Operations Limited

Between Acme AI Limited and Microsoft Ireland Operations Limited

Background

(A) Acme AI Limited is a private company limited by shares incorporated in Ireland (Company Registration No. 678901) whose registered office is at 3rd Floor, The Merchants Building, Sir John Rogerson's Quay, Dublin 2, D02 X576, Ireland.

(B) The Company carries on the business of developing and licensing artificial intelligence software-as-a-service solutions for enterprise customers in the European Union, United Kingdom and North America.

(C) Microsoft Ireland Operations Limited wishes to procure certain cloud infrastructure and platform services from the Company, and the Company agrees to provide such services subject to the terms of this Master Services Agreement.

(D) The parties have agreed to enter into this Agreement on the terms set out below.

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, and for other good and valuable consideration (the receipt and sufficiency of which are hereby acknowledged), the parties agree as follows:

1. Definitions and Interpretation

1.1 "Agreement" means this Master Services Agreement including all Statements of Work, Service Schedules and Order Forms References to "Agreement" include, where the context permits, any successor or assignee thereof.

2.1 "Confidential Information" means all information disclosed by either party in connection with this Agreement that is marked confidential or would reasonably be understood to be confidential References to "Confidential Information" include, where the context permits, any successor or assignee thereof.

3.1 "Customer Data" means all data, content and materials submitted by Microsoft Ireland Operations Limited to the Services References to "Customer Data" include, where the context permits, any successor or assignee thereof.

4.1 "Effective Date" means the date of last signature below References to "Effective Date" include, where the context permits, any successor or assignee thereof.

5.1 "Fees" means the amounts payable as set out in the applicable Order Form References to "Fees" include, where the context permits, any successor or assignee thereof.

6.1 "Force Majeure Event" means any event beyond a party's reasonable control including acts of God, war, terrorism, pandemic, governmental action, failure of utilities or internet backbone References to "Force Majeure Event" include, where the context permits, any successor or assignee thereof.

7.1 "Intellectual Property Rights" means patents, rights to inventions, copyright, database rights, trade marks, trade names, domain names, rights in get-up, rights in goodwill, rights in confidential information and all other intellectual property rights References to "Intellectual Property Rights" include, where the context permits, any successor or assignee thereof.

8.1 "Services" means the software-as-a-service platform, APIs, support and professional services described in an Order Form References to "Services" include, where the context permits, any successor or assignee thereof.

9.1 "SLA" means the service level agreement in Schedule 2 References to "SLA" include, where the context permits, any successor or assignee thereof.

10.1 "Statement of Work" means a document executed by the parties describing specific Services, deliverables, milestones and Fees References to "Statement of Work" include, where the context permits, any successor or assignee thereof.

2. Interpretation

In this Agreement, unless the context otherwise requires: (1) headings are for convenience only and do not affect

interpretation; (2) words importing the singular include the plural and vice versa; (3) references to a person include bodies corporate, unincorporated associations and partnerships; (4) "Company" means Acme AI Limited (Company Registration No. 678901); (5) references to statutes or statutory provisions include any subordinate legislation and any modification, consolidation or re-enactment thereof; (6) references to writing include email where acknowledged by the recipient; (7) references to days are to calendar days unless stated as Business Days; (8) Business Day means a day on which banks are open for business in Dublin, Ireland and London, England; (9) any obligation on a party not to do something includes an obligation not to allow it to be done; (10) the words include and including are without limitation.

The Schedules form part of this Agreement and shall have the same force and effect as if set out in the body of this Agreement. In the event of conflict between the body and a Schedule, the body shall prevail unless the Schedule expressly states otherwise.

This Agreement has been negotiated at arm's length. Each party acknowledges that it has had the opportunity to obtain independent legal advice and that the doctrine of contra proferentem shall not apply in the construction or interpretation of this Agreement.

3. Provision of Services

The Company shall provide the Services to Microsoft Ireland Operations Limited in accordance with this Agreement, the applicable SLA and each Statement of Work. The Company shall: (1) use commercially reasonable efforts to make the Services available 99.9% of each calendar month, excluding scheduled maintenance notified at least 48 hours in advance; (2) provide the Services in compliance with applicable law, including the General Data Protection Regulation (EU) 2016/679 and the Data Protection Act 2018; (3) maintain ISO 27001 certification or equivalent security controls during the term; (4) assign qualified personnel with appropriate skills and experience; (5) not materially degrade the overall functionality of the Services during the term.

Microsoft Ireland Operations Limited shall: (i) provide timely access to personnel, systems and information reasonably required; (ii) ensure authorised users comply with acceptable use policies; (iii) not use the Services to store or transmit unlawful content; (iv) maintain appropriate backups of Customer Data where required by law or internal policy.

Unless otherwise agreed in writing, the Company may engage subcontractors provided it remains responsible for their acts and omissions. A current list of material subprocessors is maintained at <https://trust.acmeai.example/subprocessors> and updated with 30 days' notice for new subprocessors handling personal data.

4. Fees; Invoicing; Payment

Microsoft Ireland Operations Limited shall pay the Fees in accordance with the applicable Order Form. Unless stated otherwise, Fees are exclusive of VAT and similar taxes, which shall be added where applicable.

Invoices are issued monthly in arrears and are payable within thirty (30) days of the invoice date. Late payments accrue interest at 1.5% per month or the maximum rate permitted by law, whichever is lower.

If Microsoft Ireland Operations Limited disputes an invoice in good faith, it shall pay the undisputed portion and notify the Company in writing of the dispute within fifteen (15) days, providing reasonable detail.

The Company may suspend Services for non-payment after thirty (30) days' written notice, provided suspension shall not relieve Microsoft Ireland Operations Limited of payment obligations for Services already rendered.

5. Intellectual Property

The Company retains all Intellectual Property Rights in the Services, platform, documentation and pre-existing materials. No rights are granted except as expressly set out herein.

Microsoft Ireland Operations Limited receives a non-exclusive, non-transferable licence to use the Services during the term for its internal business purposes, subject to user limits in the Order Form.

Customer Data remains the property of Microsoft Ireland Operations Limited. Microsoft Ireland Operations Limited grants the Company a licence to process Customer Data solely to provide the Services and as described in the Data Processing Agreement.

Feedback provided by Microsoft Ireland Operations Limited may be used by the Company without restriction or obligation. Microsoft Ireland Operations Limited waives any moral rights in Feedback to the extent permitted by law.

6. Confidentiality

Each party shall keep Confidential Information secret and use it only for purposes of this Agreement. Confidential Information may be disclosed to employees, advisers and contractors on a need-to-know basis subject to equivalent confidentiality obligations.

Confidentiality obligations do not apply to information that: (a) is public through no breach; (b) was lawfully known before disclosure; (c) is independently developed; or (d) is required to be disclosed by law, regulation or court order (with notice where permitted).

On termination, each party shall return or destroy Confidential Information within thirty (30) days, except one archival copy may be retained for compliance purposes subject to ongoing confidentiality.

7. Data Protection

To the extent the Company processes personal data on behalf of Microsoft Ireland Operations Limited, the parties shall execute the Data Processing Agreement at Schedule 3, which incorporates Standard Contractual Clauses where required for international transfers.

The Company shall implement appropriate technical and organisational measures as described in its security whitepaper and notify Microsoft Ireland Operations Limited without undue delay upon becoming aware of a personal data breach affecting Customer Data.

8. Warranties and Disclaimers

Each party warrants it has authority to enter this Agreement. The Company warrants the Services will perform materially in accordance with the documentation during the term.

EXCEPT AS EXPRESSLY SET OUT, THE SERVICES ARE PROVIDED "AS IS". THE COMPANY DISCLAIMS ALL IMPLIED WARRANTIES INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE AND NON-INFRINGEMENT.

9. Indemnification

Microsoft Ireland Operations Limited shall indemnify the Company against claims arising from Customer Data, unauthorised use, or breach of this Agreement by Microsoft Ireland Operations Limited.

The Company shall indemnify Microsoft Ireland Operations Limited against third-party claims that the Services infringe UK or EU intellectual property rights, subject to exclusions for combinations, modifications, or use outside documentation.

Indemnified party must promptly notify, permit control of defence, and cooperate. No settlement admitting liability without consent.

10. Limitation of Liability

NEITHER PARTY SHALL BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL OR PUNITIVE DAMAGES, OR LOSS OF PROFITS, REVENUE, GOODWILL OR DATA.

EXCEPT FOR BREACH OF CONFIDENTIALITY, INDEMNITY OBLIGATIONS, FRAUD OR LIABILITY THAT CANNOT BE LIMITED BY LAW, EACH PARTY'S AGGREGATE LIABILITY SHALL NOT EXCEED THE FEES PAID OR PAYABLE IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM.

11. Term; Termination; Change of Control

This Agreement commences on the Effective Date and continues until terminated. Each Order Form states its initial term and renewal mechanics.

Either party may terminate for material breach not cured within thirty (30) days of written notice. Microsoft Ireland Operations Limited may terminate for convenience on ninety (90) days' notice after the initial term of each Order Form.

Upon termination, access to Services ceases and Fees for committed periods remain payable. The Company shall provide export of Customer Data for thirty (30) days.

Change of Control of Microsoft Ireland Operations Limited does not constitute assignment if the contracting entity remains liable. Change of Control of the Company shall not terminate this Agreement but Microsoft Ireland Operations Limited may negotiate in good faith regarding continuity if the acquirer is a direct competitor.

12. Governing Law; Dispute Resolution

This Agreement is governed by the laws of England and Wales. The courts of England and Wales have exclusive jurisdiction, without prejudice to either party's right to seek injunctive relief in any jurisdiction.

Before commencing proceedings, senior representatives shall meet within fifteen (15) days to attempt good-faith resolution. If unresolved within thirty (30) days, either party may proceed to litigation.

Execution

IN WITNESS WHEREOF the parties have executed this Agreement as of the Effective Date.

SIGNED for and on behalf of Acme AI Limited

.....

Name: Dr. Siobhán O'Connell

Title: Chief Executive Officer

Date: _____

SIGNED for and on behalf of Microsoft Ireland Operations Limited

.....

Name: Authorised Signatory

Title: _____

Date: _____

Schedule 1 — Supplemental Provisions

1.1 The parties agree supplemental terms regarding escalation matrix and severity classifications. Party A shall comply with industry-standard practices and provide written evidence upon reasonable request. Party B shall cooperate in good faith and not unreasonably withhold approval. Breach of this Schedule 1 provision constitutes material breach if not remedied within twenty (20) Business Days of notice.

1.2 The parties agree supplemental terms regarding escalation matrix and severity classifications. Party A shall comply with industry-standard practices and provide written evidence upon reasonable request. Party B shall cooperate in good faith and not unreasonably withhold approval. Breach of this Schedule 1 provision constitutes material breach if not remedied within twenty (20) Business Days of notice.

1.3 The parties agree supplemental terms regarding escalation matrix and severity classifications. Party A shall comply with industry-standard practices and provide written evidence upon reasonable request. Party B shall cooperate in good faith and not unreasonably withhold approval. Breach of this Schedule 1 provision constitutes material breach if not remedied within twenty (20) Business Days of notice.

1.4 The parties agree supplemental terms regarding escalation matrix and severity classifications. Party A shall comply with industry-standard practices and provide written evidence upon reasonable request. Party B shall cooperate in good faith and not unreasonably withhold approval. Breach of this Schedule 1 provision constitutes material breach if not remedied within twenty (20) Business Days of notice.

1.5 The parties agree supplemental terms regarding escalation matrix and severity classifications. Party A shall comply with industry-standard practices and provide written evidence upon reasonable request. Party B shall cooperate in good faith and not unreasonably withhold approval. Breach of this Schedule 1 provision constitutes material breach if not remedied within twenty (20) Business Days of notice.

1.6 The parties agree supplemental terms regarding escalation matrix and severity classifications. Party A shall comply with industry-standard practices and provide written evidence upon reasonable request. Party B shall cooperate in good faith and not unreasonably withhold approval. Breach of this Schedule 1 provision constitutes material breach if not remedied within twenty (20) Business Days of notice.

1.7 The parties agree supplemental terms regarding escalation matrix and severity classifications. Party A shall comply with industry-standard practices and provide written evidence upon reasonable request. Party B shall cooperate in good faith and not unreasonably withhold approval. Breach of this Schedule 1 provision constitutes material breach if not remedied within twenty (20) Business Days of notice.

1.8 The parties agree supplemental terms regarding escalation matrix and severity classifications. Party A shall

3.5 The parties agree supplemental terms regarding audit rights and penetration testing. Party A shall comply with industry-standard practices and provide written evidence upon reasonable request. Party B shall cooperate in good faith and not unreasonably withhold approval. Breach of this Schedule 3 provision constitutes material breach if not remedied within twenty (20) Business Days of notice.

3.7 The parties agree supplemental terms regarding audit rights and penetration testing. Party A shall comply with industry-standard practices and provide written evidence upon reasonable request. Party B shall cooperate in good faith and not unreasonably withhold approval. Breach of this Schedule 3 provision constitutes material breach if not remedied within twenty (20) Business Days of notice.

3.8 The parties agree supplemental terms regarding audit rights and penetration testing. Party A shall comply with industry-standard practices and provide written evidence upon reasonable request. Party B shall cooperate in good faith and not unreasonably withhold approval. Breach of this Schedule 3 provision constitutes material breach if not remedied within twenty (20) Business Days of notice.

4.1 The parties agree supplemental terms regarding business continuity and disaster recovery RTO/RPO. Party A shall comply with industry-standard practices and provide written evidence upon reasonable request. Party B shall cooperate in good faith and not unreasonably withhold approval. Breach of this Schedule 4 provision constitutes material breach if not remedied within twenty (20) Business Days of notice.

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Appendix A — Defined Terms Cross-Reference

A.1 Cross-reference table entry 1: terms used in Sections 1–12 shall have meanings set out in clause 1 of the Definitions unless expressly varied in this Appendix.

A.2 Cross-reference table entry 2: terms used in Sections 1–12 shall have meanings set out in clause 2 of the Definitions unless expressly varied in this Appendix.

A.3 Cross-reference table entry 3: terms used in Sections 1–12 shall have meanings set out in clause 3 of the Definitions unless expressly varied in this Appendix.

A.4 Cross-reference table entry 4: terms used in Sections 1–12 shall have meanings set out in clause 4 of the Definitions unless expressly varied in this Appendix.

A.5 Cross-reference table entry 5: terms used in Sections 1–12 shall have meanings set out in clause 5 of the Definitions unless expressly varied in this Appendix.

A.6 Cross-reference table entry 6: terms used in Sections 1–12 shall have meanings set out in clause 6 of the Definitions unless expressly varied in this Appendix.

A.7 Cross-reference table entry 7: terms used in Sections 1–12 shall have meanings set out in clause 7 of the Definitions unless expressly varied in this Appendix.

A.8 Cross-reference table entry 8: terms used in Sections 1–12 shall have meanings set out in clause 8 of the Definitions unless expressly varied in this Appendix.

A.9 Cross-reference table entry 9: terms used in Sections 1–12 shall have meanings set out in clause 9 of the Definitions unless expressly varied in this Appendix.

A.10 Cross-reference table entry 10: terms used in Sections 1–12 shall have meanings set out in clause 10 of the Definitions unless expressly varied in this Appendix.

A.11 Cross-reference table entry 11: terms used in Sections 1–12 shall have meanings set out in clause 11 of the Definitions unless expressly varied in this Appendix.

A.12 Cross-reference table entry 12: terms used in Sections 1–12 shall have meanings set out in clause 12 of the Definitions unless expressly varied in this Appendix.